

ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

W.P.No. 2139 of 2021/BWP

Munira Bibi.

Vs.

Additional District Judge, etc.

<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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12.03.2021.

Mr. Jam Muhammad Sajjad, Advocate for petitioner.

Through this constitutional petition, the petitioner has called in question order dated 07.01.2021 passed by Addl. District Judge, Bahawalpur, whereby his appeal in a rent matter has been dismissed as time-barred due to non-submission of requisite Court fees within time.

2. It is contended by the learned counsel for the petitioner that the petitioner had filed an application for extension of time for filing of court fees, which application remained un-attended when the afore-referred order was passed, consequently, the same is not sustainable.

3. Heard. Record perused.

4. Perusal of the record shows that the appeal was at the stage of preliminary hearing and notice to the other party had not yet been issued when the question of submission of court fees was raised and the petitioner filed an application for extension of time to do the needful. However, without attending to the

afore-referred application, the impugned order declaring the appeal as barred by time was passed for non-submission of court fees within time. The application for extension of time went to the root of the matter and court is always vested with the jurisdiction to decide such application, which in the instant case remained un-attended, hence, the impugned order does not reflect complete and full adjudication of disputed questions of law and facts involved in the appeal as such it suffers from defect of non-exercise of court's vested jurisdiction that *prima-facie* appears to have caused prejudice to rights of the petitioner. Reliance in this regard is placed on **2008 SCMR 1259** (*Mst. IMTIAZ BEGUM versus Mst. SULTAN JAN and others*), **2015 CLC 54 [Sindh]** (*Mst. ASIA BEGUM and 2 others versus MUHAMMAD ALAM and 3 others*), **2006 MLD 1631 [Lah]** (*ABDUL WAHID versus AMIRAN BIBI*), **PLJ 2005 Lahore 554 (DB)** (*M/s. M.A. CHAUDHRY and 3 others versus NATIONAL BANK OF PAKISTAN, FAISALABAD through GENERAL ATTORNEY*), **2005 CLD 688 (Kar)** (*Multan Edible Oil Extraction Limited versus National Bank of Pakistan and 2 others*). As the impugned order was passed in absence of the other party, it would be appropriate that without issuing formal notice to the said party and commenting upon the merits of the case,

lest it may delay adjudication of the matter or prejudice the decision of the appellate court, the impugned order dated 07.01.2021 is set-aside, with the result that the appeal along with the afore-noted application shall be deemed to be pending with the learned Addl. District Judge, Bahawalpur, who shall decide the same afresh after providing an opportunity of hearing to the petitioner. With these observations, this constitutional petition is **allowed**.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan

Approved for reporting